

2031.060(h); 2033.080(d).) Because Defendants are the unsuccessful moving party, they are not entitled to sanctions.

Moreover, the court expressly advised the parties in its June 8, 2026 order that failure to engage in a good faith meet and confer process or failure to file a joint declaration as ordered would result in sanctions under CCP § 177.5. While Defendants' counsel did conduct a telephone conference and filed a declaration reporting that conference, the declaration fails to comply with the court's specific directives to identify the outstanding disputes and the parties' positions on each issue.

Motion for Protective Order DENIED.

Request for Sanctions DENIED.

Case Management Conference continued to 11.19.26. The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling:

Motion to Strike is MOOT based on the court's ruling on the demurrer to the First Amended Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	DEMURRER ON 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions